

Mohd. Tahir v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · WRIT-C No. 19862 of 2022 · WRIT - C No. - 19862 of 2022 · **Writ disposed; petitioner relegated to Para 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A consumer seeking correction of an electricity recovery and decision of a representation was relegated, without any opinion on merits, to an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, with a short stay of coercive recovery.

FACTUAL SUMMARY

Mohd. Tahir took an electricity connection on 28 March 2018. On 29 October 2018 respondent no. 4 issued a recovery of Rs. 1,30,376 for a one-year period. The petitioner approached the Allahabad High Court seeking a mandamus to correct that bill and to decide his representation dated 19 April 2022. Standing Counsel appeared for the State respondents. The Court heard the writ and disposed of it without examining whether the demand was correct.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-alternate-remedy

HOLDING

Without expressing any opinion on merits, a writ seeking correction of an electricity bill and decision of a representation is disposed of by granting liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the concerned respondent within four weeks; if so submitted, the objection is to be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 3-4

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Mandamus to correct a recovery bill and to decide a representation was refused on merits; the consumer was sent to the Para 6.5 objection before respondent no. 4. ¶ 3

clause-6.5-statutory-remedy-disputed-bill Dispute over a Rs. 1,30,376 recovery issued after the connection was treated as a Para 6.5 billing objection, to be decided after hearing, with a limited stay of coercive action. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RS. 1,30,376 RECOVERY REQUIRED CORRECTION AND WHETHER THE REPRESENTATION DATED 19 APRIL 2022 WAS WELL FOUNDED

Court expressly declined to express any opinion on merits. ¶ 3